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California lawmakers want tougher penalties for looting and first responder shams

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A group of California lawmakers, joined by top law enforcement officials and county leaders, introduced bipartisan legislation Monday, Feb. 10, that aims to impose tougher penalties on looters and those who impersonate first responders during natural disasters.

Co-written by two Democrats and two Republicans, Assembly Bill 469 would allow prosecutors to seek felony charges instead of misdemeanors for both crimes, effectively keeping offenders incarcerated longer—a move lawmakers say will help safeguard communities during emergencies and throughout the rebuilding process.

"I think the whole point of having statutes like these on the books is to be able to tell the looters upfront, 'here's what's coming,' and send actually a warning shot to the looters — that if you want to engage in this crime in a state of emergency, that we will put you in prison," Los Angeles County District Attorney Nathan J. Hochman said.

Lawmakers said the bill aims to close loopholes in existing law that could hinder prosecution. Under current statutes, looting during a state of emergency is treated as a misdemeanor, carrying a maximum penalty of one year in county jail with no option for state prison time.

If passed, AB 469 would reclassify looting as a felony, allowing for state prison sentences of up to two, three or four years, Hochman said.

The bill would also strengthen penalties for impersonating first responders, a crime currently treated as a misdemeanor. The proposed law would make it a felony, ensuring offenders face state prison time rather than county jail.

"This law changes that as well, and strengthens the laws against people impersonating firefighters, or first responders. So they will know that if they commit these crimes, their next stop will be state prison," Hochman said.

Looting and burglary are growing concerns in Los Angeles County following the devastating wildfires in January. At the height of the Palisades and Eaton fires, nearly 200,000 people were under evacuation orders, leaving many homes unoccupied and vulnerable to criminals.

Authorities have arrested more than two dozen people in connection with looting during the fires, and the district attorney's office is pursuing several cases against individuals who allegedly posed as emergency personnel to gain access to evacuation zones.

In one case, a couple was arrested for suspicion of dressing as firefighters and attempting to enter a Palisades fire evacuation zone in a fake fire truck that was emblazoned with "Roaring River Fire Department" in Oregon — a non-existent agency.

Assemblymember Blanca Pacheco, (D-Downey), a co-author of the bill whose brother is a Los Angeles County firefighter who responded to the Eaton fire, noted the "clear risks" that these deceptions pose to public safety and emergency operations.

"When people see a firefighter or other first responders during an emergency, they need to know with absolute certainty that the uniform and equipment is being worn and used by someone who is sworn to protect," Pacheco said.

Lawmakers said that the legislation is not only meant to deter crimes during disasters but also to help communities rebuild with confidence. By strengthening penalties, they hope to restore trust in evacuation orders and law enforcement, ensuring residents don't fear further victimization after returning home.

"These are special communities that were burned down, and we're going to be with them every step of the way," said Assemblymember Jesse Gabriel, (D-Encino). "So a part of this effort is to give folks a peace of mind that there will be public safety, that their homes and communities will be protected, and then we will be with them through the rebuilding process."

Los Angeles County Board of Supervisors Chair Kathryn Barger, whose district includes wildfire-impacted communities such as Altadena and Pasadena, lauded the bipartisan effort behind the bill.

"I say it speaks volume to both sides," she said. "No matter what your party recognizes, that this is not a victimless crime, that it's important to hold people accountable to the full extent of law, which, right now, the full extent of the law does not meet the severity of what that crime entails."

AB 469 is co-authored by Assemblymember Jacqui Irwin, (D-Thousand Oaks); Assemblymember Blanca Pacheco, (D-Downey); Assemblymember Heath Flora, (R-Ripon); and Assemblymember Greg Wallis (R-Bermuda Dunes).

"I think today is a great day," Los Angeles County Sheriff Robert Luna said. "What I'm urging is every legislator who wasn't involved in this, all the way up to the governor, that you support this legislation because in essence you are supporting our community."

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